

REPUBLIC OF KENYA



THIRTEENTH PARLIAMENT- THIRD SESSION

SENATE MASHINANI

1. What is the constitutional provision that allows the Senate to operate in the counties?

Article 96 (1) stipulates that the Senate represents Counties and serves to protect their interests. Further, Article 126 (1) of the Constitution of Kenya provides that a sitting of either House of Parliament may be held at any place within Kenya and may commence at any time that the House appoints. In recognition of these provisions of the Constitution, the Senate on 21st June, 2018, 13th June, 2019 and 30th May, 2023, resolved to hold its Plenary and Committee Sittings in Uasin Gishu, Kitui and Turkana counties respectively. The Sittings were held for a one-week period in the month of September.

2. Was the experience successful at first? What challenges did you find to implement it?

a. Successes

The Sittings of the Senate outside Nairobi were a success. This is as highlighted below under the objectives of *Senate Mashinani*.

Objective 1: Promote the role and work of the Senate and enhance public awareness regarding the Business of the Senate and Parliament in general

- i) The Senate and its Committees were able to interact directly with county leaders and residents. This helped foster understanding between the Senate, the County Governments and residents in enhancing and promoting the role and the work of the Senate.
- ii) The sittings of the Senate and its Committees attracted substantial and favorable media coverage during the week and in the weeks

preceding it. This helped in enhancing the visibility and knowledge of the Senate and its work among Kenyans.

Objective 2: Highlight existing and new opportunities for engagement in the legislative process

- i) Committees of the Senate held a number of meetings with their counterparts of the County Assembly and other stakeholders on pertinent issues affecting the host and neighbouring counties.
- ii) Senators and Members of the County Assemblies interacted and engaged in different Committee meetings together, which helped in networking and capacity building for the Members of the host County Assembly.

Objective 3: Develop and strengthen partnerships at the county level of government

Various dignitaries and leaders of the host and neighbouring counties attended the sittings of the Senate, thus facilitating a robust exchange of ideas, strengthening intergovernmental relations and fostering collaboration in governance.

Objective 4: Provide an opportunity to members and staff of county assemblies to learn and share best practices with Senators and parliamentary officers

- i) Senators interact with Members of the host County Assembly whereby transfer of skills and sharing of experiences takes place.
- ii) Senate staff interact with the staff of the host County Assembly whereby transfer of skills and sharing of experiences takes place, which helps in networking and capacity building for the staff of the County Assembly.

Specifically, the Senate Sitting in the three (3) counties achieved the following: -

a) Uasin Gishu

- i) The Senate, both in plenary and its Committees, was able to address the most pressing concerns of the people in the region, including through the inquiry by the Ad Hoc Committee on Maize, funding and status of the Moi Teaching and Referral Hospital, compensation for persons displaced by the construction of the Eldoret town by-pass, among others; and

- ii) As a result of the sittings and specifically the public hearings on Maize, the Government started paying long outstanding monies owed to farmers who had supplied maize to the National Cereals and Produce Board (NCPB).

b) Kitui

- i) The Senate through the Standing Committee on Information, Communication and Technology, held a meeting on 2G network with CAK connectivity in Tharaka, Nguuku and Ngomeni wards as a follow up from the Committee's visit in August, 2018;
- ii) The Senate through the Standing Committee on Agriculture, Livestock and Fisheries held public and stakeholders' engagement on the Mung Beans (*Ndengu*), which has led to the proposal of the Mung Beans Bill which was passed by the Senate and referred to the National Assembly for consideration; and
- iii) The Senate through the Standing Committee on Justice, Legal Affairs and Human Rights and the Standing Committee on National Security, Defence and Foreign Relations visited Kitui Prisons and Remand, where petty offenders were bailed out and released.

c) Turkana

The Senate sittings in Turkana county symbolized the commitment by the Senate to bringing governance closer to the people, demonstrating that no matter the distance, direct engagement with the people from all corners of the nation is a priority for the Senate.

b. Challenges

- i) Logistical complexity: Moving the entire operations of the Senate including staff and equipment to a new location has required extensive planning and coordination. This involves sourcing for plenary and committee rooms, accommodation, transportation, hospitality and medical facilities.
- ii) Technical infrastructure: The Senate relies on a complex network of ICT Systems to function effectively. Ensuring smooth operation in a new location requires significant adjustments and a heightened level of co-ordination.

3. How do you decide the counties where the Senate will convene?

The directorate in charge of the *Senate Mashinani* event prepares a brief on the potential counties to host the event, for consideration by the Senate Board of Management (SBoM). The SBoM then recommends to the Senate Business Committee (SBC) of the counties suitable to host the event. The SBC considers the brief and resolves that the Office of the Clerk undertakes reconnaissance exercises in the counties, to ascertain their suitability for hosting a sitting of the Senate outside Nairobi.

The Clerk of the Senate thereupon establishes a reconnaissance team consisting of officers from different Directorates and Departments from the Senate. The parameters for assessment include capacity of the assembly chamber, committee rooms, availability of town halls, power back up, accessibility by PWDs, Senate leadership and Secretariat offices, adequate and suitable accommodation, transportation, security and health centers and catering facilities for Senators and parliamentary staff.

4. Is there a model for the Senate to meet in the counties? What types of decisions do legislators make when they while they are there? Do they meet with constituents? How integrated are constituents into this process?

The model is similar to the one in Nairobi. The Senate holds Plenary sittings from Tuesday to Thursday during the week of *Senate Mashinani*, where business is transacted as scheduled in Order Paper and Weekly Programme of Business, while highlighting the business which encompasses the needs and challenges faced by the particular host county.

The Senate Committees during *Senate Mashinani*, hold meetings and conduct site/inspection visits in the host and neighbouring counties. The Committees also interact with the residents/constituents during public participation process on Bills and select agenda items with a focus on the host and neighbouring counties.

5. How effective has the project been in terms of decision making and making sure citizens feel represented?

The objective of the sittings in the counties is to bring the Senate closer to the people and the counties it represents. This objective has been achieved in all the three (3) *Senate Mashinani* events as evident above.